

Vikas Pratap Singh v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 11 April 2023 · WRIT - C No. 7501 of 2023 · **Disposed; compounding-fee notice withdrawn, fresh order left open**

HEADNOTE

Writ to quash a demand notice dated 1 September 2022 for a compounding fee in a theft-of-electricity case. The Electricity Department stated that the notice had been withdrawn and that a fresh order would follow the prescribed procedure. The petition was disposed of with liberty to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. No clause was construed.

FACTUAL SUMMARY

Vikas Pratap Singh filed a writ in the Allahabad High Court to quash a demand notice dated 1 September 2022 issued by respondent no. 3. The notice sought a compounding fee in a case of theft of electricity. The State of U.P. and the Electricity Department were respondents. On 3 and 15 March 2023 the Department took time to obtain instructions, and on 22 March the case was adjourned at the petitioner's request. On 3 April 2023, with respondents' counsel absent, the Court stayed recovery under the notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

compounding-fee demand withdrawn; fresh order under Supply Code procedure

HOLDING

On the Electricity Department's statement that the demand notice dated 1 September 2022 for a compounding fee in a theft case had been withdrawn, and that a fresh order would follow the prescribed procedure, the writ was disposed of. The Department was left at liberty to pass that fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court named no clause and did not decide the fee. ¶ 5

PRINCIPLE TAGS

procedural-listing-no-construction After adjournments, the writ ended because the Department withdrew the 1 September 2022 compounding-fee notice. Disposal with liberty to pass a fresh order under the Supply Code, 2005, construed no clause. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY COMPOUNDING FEE IS PAYABLE FOR THE ALLEGED THEFT, AND THE TERMS OF ANY FRESH ORDER.

The impugned notice was withdrawn. The Court did not assess the theft or the fee and left any fresh order to the procedure under the Supply Code, 2005. ¶ 5